

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #08	CCRB Case #: 201400245	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 01/06/2014 2:00 PM, Tuesday, 01/07/2014 12:00 AM, Wednesday, 01/08/2014 12:00 AM	Location of Incident: 120th Precinct stationhouse; § 87(2)(b) [REDACTED]	18 Mo. SOL 7/6/2015	Precinct: 120
Date/Time CV Reported Thu, 01/09/2014 10:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/09/2014 10:57 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT John Borruso	01520	924967	120 PCT
2. An officer			
3. POF Ebony Glover	23785	928383	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dustin Levi	26208	943480	120 PCT
2. POM Russell Bordina	12974	948685	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Borruso	Discourtesy: On January 6, 2014, January 7, 2014, and January 8, 2014, at the 120th Precinct stationhouse and at § 87(2)(b), Sgt. John Borruso spoke discourteously to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POF Ebony Glover	Discourtesy: On January 7, 2014, at the 120th Precinct stationhouse, PO Ebony Glover spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . An officer	Discourtesy: On January 8, 2014, at the 120th Precinct, an officer spoke discourteously to § 87(2)(b)	C . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]

Case Summary

On January 6, 2014, at approximately 2:00 p.m., at the 120th Precinct stationhouse in Staten Island, § 87(2)(b) a § 87(2)(g), § 87(2) student, and her mother, § 87(2)(b) attempted to file a police report and an order of protection against four of § 87(2)(b)'s classmates. Sgt. John Borruso of the 120th Precinct allegedly said, "You just want me to lock up every fucking body," to § 87(2)(b) and § 87(2)(b) (**Allegation A**).

On January 7, 2014, at approximately 12:45 p.m., at § 87(2)(b) in Staten Island, Sgt. Borruso, PO Dustin Levi and PO Russell Bordina of the 120th Precinct met § 87(2)(b) in Dean § 87(2)(b)'s office. Sgt. Borruso allegedly said to § 87(2)(b) "You are wasting my fucking time. This is bullshit. If you have such a problem with the school, then why can't you transfer your daughter to another school?" and, "It's my decision who gets locked up. I am not locking nobody the fuck up. This is ridiculous. How do you know you daughter is not starting shit? You need to go to family court. That is your best damn bet because nothing is happening here and I am not doing shit" (subsumed in **Allegation A**). That same day, at 3:00 p.m., § 87(2)(b) went to the 120th Precinct stationhouse to file a violation of an order of protection. PO Ebony Glover of the 120th precinct allegedly told § 87(2)(b) that she did not know "what the hell she was talking about," and that her complaint was a "waste of fucking time." She said § 87(2)(b) needed to leave the "damn" precinct, and if § 87(2)(b) did not leave, PO Glover would "escort her ass the fuck out" (**Allegation B**).

On January 8, 2014, at approximately 2:30 p.m., § 87(2)(b) and § 87(2)(b) went to the 120th Precinct stationhouse to follow up on their complaint about the violation of the order of protection. When Sgt. Borruso saw them, he allegedly spoke discourteously (subsumed in **Allegation A**). § 87(2)(b) also alleged that an unidentified officer told her, "This is bullshit," and said that she had to "find something better to do with her day than call the police" (**Allegation C**).

§ 87(4-b), § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

Mediation was presented to § 87(2)(b) but she explained that she was planning on filing a lawsuit against the NYPD, which made her complaint unsuitable for mediation. On November 14, 2014, Investigator Ajayi submitted a FOIL request to the New York City Comptroller's Office, and it was revealed that § 87(2)(b) did not file a notice of claim with the City of New York (enc. 22A-22B). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint, and § 87(2)(b)'s first (enc.4A-5A).
- Sgt. Jon Borruso has been a member of the NYPD for 14 years, and this is the first time he has been named a subject officer (enc. 2A).

- PO Ebony Glover has been a member of the NYPD for 13 years, has had three previous CCRB allegations involving three cases with no substantiated allegations (enc.3A). § 87(2)(g)

Potential Issues

- § 87(2)(g) did not cooperate with the investigation, and that neither she nor § 87(2)(b) responded to attempts to collect additional information over the phone.
- § 87(2)(g)

NYPD Documents

- The Roll Call and the Command Log could not identify an officer who matched the description § 87(2)(b) provided as the officer who spoke discourteously to her on January 8, 2014, at the 120th Precinct stationhouse (enc.18A-20O).

Findings and Recommendations

Allegation A-Discourtesy: On January 6, 2014, January 7, 2014, and January 8, 2014, at the 120th Precinct stationhouse, and at § 87(2)(b) in Staten Island, Sgt. John Borruso spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that on January 6, 2014, after she went to § 87(2)(b) and the Staten Island District Attorney's Office, she went to the 120th Precinct stationhouse to follow up on her complaint concerning the students who wanted to attack § 87(2)(b). She claimed that Sgt. Borruso said to her and § 87(2)(b) "You want me to lock up every fucking body" (enc.7B-7E).

Sgt. Borruso did not specifically recall interacting with § 87(2)(b) on January 6, 2014. He did not recall seeing her at § 87(2)(b). He stated that § 87(2)(b) "probably" came to the 120th Precinct stationhouse because the normal procedure is to file a complaint at the stationhouse after an incident has occurred at the school, but he could not independently recall if he spoke to § 87(2)(b) and § 87(2)(b) at the 120th Precinct stationhouse on January 6, 2014. He denied saying to § 87(2)(b) at the stationhouse: "You want me to lock up every fucking body," (enc. 11E-11G).

It is undisputed that on January 7, 2014, at § 87(2)(b) § 87(2)(b) and Sgt. Borruso had a conversation and viewed video footage in Dean § 87(2)(b)'s office. It is undisputed that PO Levi (enc.9E-9G), and PO Bordina (enc.10F-10G) were also present at some point during § 87(2)(b) and Sgt. Borruso's interaction at § 87(2)(b).

§ 87(2)(b) alleged that on January 7, 2014, at § 87(2)(b) located at § 87(2)(b) in Staten Island, Sgt. Borruso said the following to her: You are wasting my fucking time. This is bullshit. If you have such a problem with the school, why can't you transfer your daughter to another school? I am not your personal officer... it's my decision who gets locked up... I am not locking nobody the fuck up. How do you know your daughter is not starting shit?" When § 87(2)(b) asked Sgt. Borruso to view the video footage she had, proving that the students

were harassing § 87(2)(b) Sgt. Borruso allegedly said, “This is bullshit. These kids do this shit all the damn fucking time, and what do I do—lock them up? ...I am sitting here doing a million fucking paperwork...this is a waste of fucking time. Move your damn kid. ..Stop wasting my damn time... You need to go to family court. That is your best damn bet, because nothing is happening here. It is my determination and I am not doing shit” (enc. 7B-7E).

Sgt. Borruso, PO Levi, and PO Bordina denied hearing any officer make this statement, and § 87(2)(b) could not recall hearing an officer make this statement (enc. 8B-8C). Sgt. Borruso denied using profanity at any point while talking to § 87(2)(b) and/or § 87(2)(b)

§ 87(2)(b) stated that on January 8, 2014, she and § 87(2)(b) went to the 120th Precinct stationhouse to follow up on her complaint against the students who had violated § 87(2)(b)'s order of protection. § 87(2)(b) alleged that Sgt. Borruso said the following to her: “When are you going to get the hint? Nothing is going to be fucking done;” and the following to § 87(2)(b) “You know this is bullshit...Why are they bothering you? They have nothing else to fucking do but bother you? What are you doing?” and that it was probably § 87(2)(b)'s “damn boyfriend’s fault,” because he is a “fucking instigator” (enc.7B-7E).

St. Borruso denied saying any of the above comments or anything similar to § 87(2)(b) or § 87(2)(b) on January 8, 2014, at the 120th Precinct stationhouse, and he did not hear another officer say these comments or anything similar.

PO Glover (enc. 12C), PO Levi, and PO Bordina were not present during § 87(2)(b) and Sgt. Borruso’s alleged interactions on January 6, 2014, or January 8, 2014, and they never heard about interactions between § 87(2)(b) and Sgt. Borruso on these dates from any other civilian or officer.

§ 87(2)(g)
It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B-Discourtesy: On January 7, 2014, at the 120th Precinct stationhouse, PO Ebony Glover spoke discourteously to § 87(2)(b)

It is undisputed that on January 7, 2014, at the 120th Precinct stationhouse, § 87(2)(b) and PO Glover had an interaction.

§ 87(2)(b) alleged that PO Glover told her that she “did not know what the hell she was talking about,” and that Sgt. Borruso told her that § 87(2)(b) was constantly filing complaints. PO Glover told her to leave the “damn stationhouse,” and that if § 87(2)(b) got nasty or raised her voice again, PO Glover would “escort her ass the fuck out of the stationhouse.”

PO Glover said that at the 120th Precinct stationhouse, § 87(2)(b) was screaming, cursing, and carrying on about something that happened at § 87(2)(b) with Sgt. Borruso.

PO Glover could not recall making the aforementioned statement (enc.12C). Sgt. Borruso denied being present during this interaction, and never heard about the interaction from PO Glover (11E-11G).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C-Discourtesy: On January 8, 2014, at the 120th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that on January 8, 2014, she and § 87(2)(b) went to the 120th Precinct stationhouse. A uniformed officer (described as a Hispanic male, standing 6'0" tall, weighing 210 pounds, with a bald head and thick eyebrows) said to § 87(2)(b) "This is bullshit," and that she had to find something better to do with her time.

Sgt. Borruso did not recall any officer from the 120th Precinct who fit the aforementioned description, and he did not hear any officer or officers say the aforementioned statement or anything similar to § 87(2)(b). Sgt. Borruso did not hear any officer or officers use any profanities at any time when speaking to § 87(2)(b) or § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Officer Unidentified**.

§ 87(2)(g), § 87(4-b)

Pod: 8

Investigator: _____ Erin Sweeney _____ January 6, 2015
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date